

STATE OF NEW YORK

7150--B

2025-2026 Regular Sessions

IN SENATE

April 2, 2025

Introduced by Sen. HINCHEY -- read twice and ordered printed, and when printed to be committed to the Committee on Education -- recommitted to the Committee on Education in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law, in relation to deadlines for filing nominating petitions for small city school board elections

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivisions 1 and 2 of section 2608 of the education law,
2 subdivision 1 as amended by chapter 273 of the laws of 1987 and subdivi-
3 sion 2 as amended by chapter 502 of the laws of 1974, are amended to
4 read as follows:
5 1. Candidates for members of the board of education in a city school
6 district shall be nominated by petition directed to the board of educa-
7 tion and signed by at least one hundred persons qualified to vote at
8 school elections in such district. Such petition shall contain the names
9 and residences of the candidates for the vacancies in the board of
10 education to be filled at the annual election. Where a proposition has
11 been adopted by the voters of such district to require that each vacancy
12 on the board of education to be filled shall be considered a separate
13 specific office, a separate petition shall be required to nominate a
14 candidate to each separate office and such petition shall describe the
15 specific vacancy on the board of education for which the candidate is
16 nominated, which description shall include at least the length of the
17 term of office and the name of the last incumbent, if any. Such
18 petitions shall be filed in the office of the clerk of the board of
19 education between the hours of nine a.m. and five p.m., on or before the
20 [~~twentieth~~] thirtieth day preceding the day of the annual election. The

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 clerk shall refuse to accept petitions signed by an insufficient number
2 of qualified voters, or petitions which are not timely. If a candidate
3 for whom a nominating petition for the office of member of a board of
4 education has been duly filed withdraws such petition, dies or becomes
5 otherwise ineligible to hold such office at a time which is later than
6 fifteen days before the last day for the filing of nominating petitions
7 as provided in this subdivision, the time for filing nominating
8 petitions for such office shall be extended to five p.m. on the
9 fifteenth day after the date on which the candidate withdrew, died or
10 otherwise became ineligible to hold such office, provided that no such
11 nominating petition may be filed after five p.m. on the seventh day
12 preceding the election.

13 2. The board of education shall cause to be printed official ballots
14 containing the names of all candidates as above provided, except that
15 the board may refuse to have the names of ineligible candidates placed
16 on such ballots. The names of the candidates shall be arranged in the
17 order as determined by the drawing by lot in accordance with the
18 provisions of paragraph b of subdivision two of section two thousand
19 thirty-two of this ~~law~~ title. Blank spaces shall be provided so that
20 voters may vote for candidates who have not been nominated for the
21 offices to be filled at such elections. The form of such ballots shall
22 conform substantially to the form of ballots used at general elections
23 as prescribed in the election law. Such ballots shall be printed at the
24 expense of the city school district.

25 § 2. Paragraph b of subdivision 2 of section 2032 of the education
26 law, as amended by chapter 502 of the laws of 1974, is amended to read
27 as follows:

28 b. The names of all candidates for each separate specific office shall
29 be grouped together and at the top of each group shall be placed a
30 description of the separate specific office for which such candidates
31 are nominated, which description shall include at least the length of
32 the term of office and the name of the last incumbent, if any, and in
33 addition a direction that only one vote may be cast in each separate
34 group. The names of the candidates for each separate specific office
35 shall be listed in the order as determined by a drawing by lot. Such
36 drawing shall be conducted by the clerk of the board of education and
37 shall be held the day after the last possible date for candidates to
38 file a petition. In the event that any candidate is not present in
39 person or by a person designated in a written proxy to accomplish the
40 drawing, the district clerk shall be authorized to act as proxy. In any
41 district where a proposition has been adopted pursuant to ~~paragraph~~
42 subdivision b of section two thousand eighteen of this title, the names
43 of all candidates for vacancies upon the board of education shall be
44 arranged according to lot as prescribed in this section, and a direction
45 shall be made that as many candidates may be voted for as there are
46 vacancies to be filled.

47 § 3. This act shall take effect on the first of July next succeeding
48 the date on which it shall have become a law.